Tentative Rulings for June 26, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION TO COMPEL DEPOSITION OF ORANGE COAST TITLE COMPANY'S PERSON MOST QUALIFIED AND PRODUCTION OF DOCUMENTS

Moving party: Defendant/Cross-Complainant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased

Responding party: Plaintiff/Cross-Defendant Orange Coast Title Company of Southern California

See ruling below.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION TO COMPEL DEPOSITION OF REAL ADVANTAGE TITLE INSURANCE COMPANY'S PERSON MOST QUALIFIED AND PRODUCTION OF DOCUMENTS

Tentative Ruling:

Moving party: Defendant/Cross-Complainant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased

Responding party: Plaintiff/Cross-Defendant Real Advantage Title Insurance Company

At the May 29, 2026, hearing, the Court continued the hearing to June 26, 2026, to allow Plaintiffs the opportunity to file a response to Barker's consolidated reply. In accordance with the Court order, on June 18, 2026, Plaintiffs filed their consolidated supplemental opposition.

Plaintiffs' consolidated supplemental opposition addresses new matters introduced in Barker's consolidated reply regarding four categories of documents. As a recap, in the consolidated reply filed by Barker, she raised new issues pertaining to certain documents which Barker learned about subsequent to the filing of the instant motions and before the date of the hearing. Barker pointed out that Mike Marconi, the president of OCTSC and RATIC Board member, during his deposition on Mary 19, 2026, identified four categories of documents, which Barker contends are "highly relevant" and directly responsive to Requests Nos. 21 and 22 placed at issue in the instant motions (any documents or communications relating to any agreement allocating money, responsibility, liability, or damages of RATIC or OCTSC or OCT related to settlement or Bob's lawsuit). (Manvitz Reply Decl., Ex. 1.) The purportedly "highly relevant" documents identified by Marconi are described as follows:

(1) A 2022 Securities Purchase Agreement listing Bob's litigation and allocating liability to the seller (i.e. the RATIC Board members)
(2) RATIC Board Minutes allocating liability for the Bob's Litigation to RATIC
(3) Accounting records summarily showing who paid for attorneys' fees claimed as damages;
(4) Documents showing what each Plaintiff paid for the settlement amount claimed as damages.

Barker argued that these documents are relevant to show who paid money for the damages (if any) including the attorneys' fees Plaintiffs allegedly paid and that this issue was previously before the Court on Barker's motion to compel Plaintiffs to comply with Request for Production Nos. 72-74 (all documents relating to damages and accounting record relating to settlement).

Plaintiffs argue that, as to the four specific categories of documents mentioned in Barker's consolidated reply, Barker must show good cause for production and cannot rely on past ruling on Request for Production. As to the first two categories, they point out that Marconi's testimony does not show that the documents are relevant. For example, Plaintiffs argue that the Security Purchase Agreement had nothing to do with how each Plaintiff allocated liability for settlement with Bob as Marconi merely explained that the Security Purchase Agreement was entered as part of the sale of OCH to Acrisure and, as part of due diligence for the sale, the parties to the transaction were obligated to disclose "bucket" of litigation that the parties were involved in to identify their respective liabilities. (Declaration of Lee K. Fink, Ex. A [J. Marconi Depo., 20:18-25; 22:4-7, 13-15, 39:7-13].) Plaintiffs otherwise argue that the agreement is confidential. Furthermore, the Fink declaration also states Plaintiffs' counsel reviewed all of RATIC's Board minutes, and none of the minutes reflect any agreement for RATIC to pay for the settlement or even reference the Bobs litigation. (Fink Decl., ¶ 6.)

As Plaintiffs argue, as to the first two categories of documents, the issue of relevancy is not properly before the Court in the context of the instant motions. Barker has decided to belatedly inject demands for specific documents on the assertion they are covered by productions which the Court has previously ordered, whereas it is unclear whether the previous Requests for production were reasonably particularized to be inclusive of these documents. Therefore, as Plaintiffs note in their supplemental opposition, good cause for the production of these documents must be independently shown. Therefore, any contentions raised by Barker in seeking production of the first two categories of documents identified by Marconi's testimony should be disregarded and are denied.

As to the remaining two categories of documents pertaining to records of attorneys' fees incurred and paid by Plaintiffs, Plaintiffs assert that they have already agreed to produce the documents and have produced the record of the entire $10.5

million settlement payment from RATIC to Bobs. (Fink Decl., ¶ 7.) On that basis, Plaintiffs argue that the demand for these documents is moot.

Most critically as Plaintiffs point out, Barker's attempt to belatedly inject demands for the newly-mentioned four categories of documents in the context of the instant motion is time-barred. A motion to compel answers to deposition must have been brought 60 days of the completion of the record of the PMK depositions. (Code Civ. Proc., § 2025.480(b).) Because these demands are now being made past the time limit, it is unclear whether Barker may seek production under these motions.

In light of Plaintiffs' arguments in its consolidated supplemental opposition, the Courts previous tentative is amended only to the extent the tentative was to grant the motion as to these four categories of documents. Otherwise, the Court's original Tentative remains unchanged.

For Convenience the Court has included its prior Tentative below:

> In 2018, non-party BOBS LLC ("BOBS") loaned $27 million to Sunniva Production Campus, LLC ("Sunniva"), a company owned and/or controlled by Defendant Michael Barker ("Barker"), to fund construction of a cannabis facility on real property in Cathedral City (the "Property"). Plaintiff Orange Coast Title Company of Southern California ("OCTSC") provided escrow and title services for the loan, and BOBS required a lender's policy of title insurance through Plaintiff Real Advantage Title Insurance Company ("RATIC") ("OCTSC" and "RATIC" collectively "Plaintiffs").
>
> To induce Plaintiffs to issue the policy, Barker executed an Indemnity Agreement in 2018, both as a representative of Sunniva and in his individual capacity ("2018 Indemnity Agreement"). In 2019, BOBS agreed to loan Sunniva an additional $6 million, and Barker executed a second Indemnity Agreement ("2019 Indemnity Agreement"). Under both agreements, Barker agreed to indemnify, defend, and hold Plaintiffs harmless from any mechanic's lien claim to which the Title Policy applied.
>
> After Sunniva stopped paying its contractors and Orr Builders recorded a $9.9 million mechanic's lien against the Property, BOBS foreclosed on the Property and, on March 3, 2021, sued Plaintiffs in *BOBS LLC v. Orange Coast Title Company of Southern California, et al.* (Case No. CVPS2101103) (the "BOBS Action") for closing escrow contrary to its escrow instructions. On November 15, 2023, the jury returned a verdict in favor of BOBS, finding OCTSC and RATIC liable for breach of contract and negligence. The parties thereafter entered into a Settlement Agreement whereby OCTSC and RATIC agreed to pay BOBS $10.5 million.
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> On June 20, 2023, Plaintiffs filed the Complaint against Barker alleging a single cause of action for breach of contract—2019 Indemnity Agreement. On September 13, 2024, Barker filed the operative First Amended Cross-Complaint

("FACC"), asserting causes of action for (1) breach of contract; (2) negligence; (3) breach of fiduciary duty; and (4) declaratory relief.

On December 17, 2025, Barker served Second Amended Notices of Deposition of OCTSC's and RATIC's Persons Most Qualified ("PMQ"), scheduling the depositions for January 12, 2026, and January 14, 2026, respectively. (Manvitz Decl. ¶ 13, Exs. 8–9.) The notices designated topics including communications concerning the escrow and title insurance for the BOBS loan (Topics 1, 2); OCTSC's policies and procedures relating to title insurance (Topic 3); OCTSC's procedures, policies, and practices relating to escrow and escrow closing (Topic 5); the escrow instructions and escrow closing related to the BOBS loan (Topic 6); the basis for Plaintiffs' indemnity claims (Topic 12); Plaintiffs' decision to enter into the Settlement Agreement with BOBS (Topic 16); and Plaintiffs' damages for Barker's alleged breach of the Indemnity Agreement (Topic 17). The notices were accompanied by Document Requests, including No. 21 (documents and communications relating to any agreement allocating money, responsibility, liability, or damages of RATIC and/or OCTSC related to the Settlement Agreement and/or BOBS Action); No. 22 (documents and communications relating to the allocation of money, responsibility, liability, or damages related to the Settlement Agreement and/or BOBS Action); No. 24 (communications with the California Department of Insurance ["DOI"] regarding the Settlement Agreement and/or BOBS Action); and No. 26 (communications with the DOI regarding the Administrative Services Agreement between Plaintiffs).

Plaintiffs designated **Kent Schmeeckle** as PMQ for both entities. Schmeeckle appeared as PMQ designee for OCTSC on January 12, 2026, and for RATIC on January 14, 2026. (Manvitz Decl. ¶¶ 14, 18.) Plaintiffs explained that Schmeeckle had served as Plaintiffs' PMQ in the BOBS Action and that other potentially knowledgeable individuals were unavailable: Bill Burding, RATIC's general counsel and a member of RATIC's Board of Directors, was retired and ill; John Wiley, an underwriter on the BOBS transaction and a RATIC board member, had passed away; David Schumacher, OCTSC's Vice President and Senior Underwriter and Claims Officer, had resigned; Yvonne Collard, the lead escrow officer on the transaction, had resigned to pursue other ventures; and Alma Rushing, who supervised OCTSC's escrow departments, was on medical leave. (Fink Decl. ¶ 3.) At deposition, Plaintiffs' in-house counsel and the designee himself identified Mike Marconi (President and COO of OCTSC and a RATIC Board member), John Marconi, Rich Macaluso (CEO of RATIC and Co-CEO of OCTSC), and Bill Burding as the executives knowledgeable about the disputed topics. (Manvitz Decl. ¶ 9, Ex. 4 [Schmeeckle Depo.] at 26:8–22, 38:12–40:3, 54:14–55:11; Ex. 10 [Hernandez Depo.] at 19:4–21, 31:24–32:12, 78:24–79:4.) Plaintiffs declined to designate any of them and moved to quash the depositions of Marconi and Macaluso. On May 6, 2026, the Court denied Plaintiffs' motion to quash the deposition of Mike Marconi, and Marconi was deposed on May 19, 2026. (Manvitz Suppl. Decl. ¶ 3, Ex. 1.)

On February 10, 2026, the Court granted Barker's motion to compel further responses to his third set of Requests for Production of Documents ("RFPs"), ordering Plaintiffs to provide further verified responses, production, and a privilege log within 30 days as to RFP Nos. 70–88—categories addressing reinsurance, underwriting, settlement negotiations, communications regarding alleged damages, and RATIC's analysis of potential liability and loss reserves. The Court further directed: "To the extent Barker seeks to compel further testimony from OCTSC's PMQ, Barker must meet and confer and, if necessary, file an appropriate motion seeking to do so. (C.C.P., § 2025.480; Cal. Rules of Court, rule 3.1345.)" (Manvitz Decl. ¶ 12, Ex. 6.)

Barker argues that Plaintiffs failed to satisfy their duty under CCP § 2025.230 to produce a witness "most qualified" and adequately prepared on the noticed topics, and contends that Plaintiffs' designee, **Kent Schmeeckle**, lacked meaningful knowledge on the topics most central to the indemnity dispute. As to OCTSC, Barker asserts a qualified witness must be produced on Topics 1, 2, 3, 5, and 6 (OCTSC's escrow policies, practices, and handling of the BOBS escrow), Topic 12 (the basis for Plaintiffs' indemnity claims), Topic 16 (the decision to enter the $10.5 million settlement), and Topic 17 (each Plaintiff's damages, including allocation of the settlement payment between RATIC and OCTSC). As to RATIC, Barker seeks a qualified witness on Topics 12, 16, and 17 only. Barker further argues that Document Requests Nos. 21, 22, 24, and 26—covering allocation of the settlement payment, communications with the DOI about the BOBS settlement, and communications about the inter-entity Administrative Services Agreement—concern the same subject matter the Court already ordered produced in its February 10, 2026 order. Barker also seeks monetary sanctions of $39,700 per motion, and evidentiary sanctions precluding Plaintiffs from offering the $10.5 million payment as damages at trial.

In opposition, Plaintiffs argue the motions should be denied as procedurally and substantively defective. Procedurally, Plaintiffs contend the motions lack a separate statement under CRC Rule 3.1345. Substantively, Plaintiffs argue that CCP § 2025.230 requires the "most qualified" witness, not the most knowledgeable, and that **Schmeeckle** was the appropriate designee given that more knowledgeable individuals are unavailable and Schmeeckle previously served as Plaintiffs' PMQ in the BOBS Action. Plaintiffs maintain that Schmeeckle gave more than 11 hours of substantive testimony on the noticed topics and that Barker's complaints concern subjects (allocation, reinsurance, organizational structure) that were never noticed; they further assert that allocation is, in any event, legally irrelevant because RATIC and OCTSC were jointly and severally liable in the BOBS Action. As to the Document Requests, Plaintiffs argue the motion is moot: they produced documents at the depositions, produced more pursuant to the February 10, 2026 order, and per the Hernandez Declaration confirmed there is no responsive allocation documentation and no responsive communications with the DOI. Plaintiffs request denial and $13,800 in monetary sanctions.

Along with his reply, Barker submitted the Supplemental Declaration of Randall Manvitz. New evidence submitted with reply papers is generally disfavored and permitted only in exceptional circumstances; the Court nonetheless has discretion to consider it provided the opposing party is afforded an opportunity to respond. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538.) Here, the Marconi deposition testimony attached to the Supplemental Declaration post-dates Plaintiffs' opposition and directly responds to Plaintiffs' arguments regarding (1) the unavailability of more knowledgeable witnesses, (2) the legal irrelevance of allocation, and (3) the absence of responsive allocation documents. **Under these circumstances, the Court will exercise its discretion to consider the Supplemental Declaration and afford Plaintiffs an opportunity to respond at the hearing.**

In reply, Barker argues that CRC Rule 3.1345 does not apply to a motion to compel a corporate designee's appearance, and contends that, in any event, the moving memoranda satisfy the "concise outline" alternative under CRC Rule 3.1345(b)(2). On the merits, Barker argues that Schmeeckle was Plaintiffs' BOBS Action PMQ for RATIC only, not for OCTSC's escrow practices, and that Plaintiffs' opposition does not rebut his lack of knowledge on the disputed topics. Barker further points to May 19, 2026 testimony from former OCTSC president Mike Marconi, which he contends establishes that the Indemnity Agreement applies only to RATIC (defeating the joint-and-several "allocation is irrelevant" theory); that reinsurer Lloyds of London paid $9.5 million of the $10.5 million settlement; that knowledgeable OCTSC escrow employees (Steve Ayers and Lori Fellman) exist but were not designated; and that additional responsive documents (a 2022 Securities Purchase Agreement, RATIC Board Minutes, and accounting records of fee payments) have not been produced, narrowing the scope of the Hernandez Declaration's no-documents representation. Barker also withdrew his request for issue/evidentiary sanctions, leaving only the request for monetary sanctions.

<u>Analysis</u>

1. Legal Standard

A party may notice the deposition of an organization that is a party by describing with reasonable particularity the matters on which examination is requested; the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (CCP § 2025.230.) The burden is on the entity, not the examiner, to produce the right witnesses, and if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do. (*Maldonado v. Sup. Ct.* (2002) 94 Cal.App.4th 1390, 1395–96.)

When document production is at issue, the witness or someone in authority is expected to make an inquiry of everyone who might be holding responsive documents or everyone who knows where such documents might be held. (*Id.* at 1397.) The entity is not, however, required to produce former employees just because they are far more knowledgeable about the litigation than anyone currently employed by the company; the duty is limited to producing the most knowledgeable person currently in its employ and making sure that that person has access to information and documents reasonably available within the corporation. (*Id.* at 1398; see also *LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 951–52.)

A motion to compel the appearance and testimony of an entity's designee, and the production of documents described in the deposition notice, lies under CCP § 2025.450(a). (CCP § 2025.450(a).) The motion must set forth specific facts showing good cause and be accompanied by a meet-and-confer declaration. (CCP § 2025.450(b).) By contrast, a motion to compel further answers from a deponent who has appeared and testified, or further production from a deponent who has produced something, lies under section 2025.480 and must be accompanied by a separate statement under CRC Rule 3.1345. If a section 2025.450 motion is granted, the court shall impose monetary sanctions against the unsuccessful opposing party unless that party acted with substantial justification or sanctions would otherwise be unjust. (CCP § 2025.450(g)(1).) Section 2025.480(j) provides parallel mandatory monetary sanctions. (CCP § 2025.480(j).)

2. On the Merits

A. <u>Procedural Objections</u>

As an initial matter, Plaintiffs argue that both motions seek to compel further deposition testimony under CCP § 2025.480, which requires a separate statement complying with CRC Rule 3.1345(a)(4), and that the absence of such a statement is an independent ground for denial.

Barker responds that CRC Rule 3.1345 does not apply to a motion to compel a section 2025.230 corporate designee, because rule 3.1345(a)(4) addresses motions to compel "answers at deposition"—*i.e.*, responses to particular questions over which objections were raised—whereas the present motions seek to compel the appearance of a qualified witness under section 2025.450(a). Barker further argues that, in any event, rule 3.1345(b)(2) permits the Court to allow a "concise outline" in lieu of a separate statement, and the moving memoranda satisfy that alternative by identifying each disputed deposition topic and the witness's express lack of information. As to Document Requests, Barker contends a separate statement was provided.
CCP § 2025.450 governs motions to compel a designee's appearance and document production listed in the deposition notice; the statute requires only specific facts showing good cause and a meet-and-confer declaration. (CCP §§ 2025.450(a), (b).) Section 2025.480 governs motions to compel further answers or production after a deponent has appeared, and CRC Rule 3.1345 requires a separate statement for such motions. The Court's February 10, 2026 ruling on

Barker's earlier motion to compel OCTSC's PMQ expressly directed: "To the extent Barker seeks to compel further testimony from OCTSC's PMQ, Barker must meet and confer and, if necessary, file an appropriate motion seeking to do so. (C.C.P., § 2025.480; Cal. Rules of Court, rule 3.1345.)" (Manvitz Decl. ¶ 12, Ex. 6.)

The current motions are most accurately characterized as motions to compel further PMQ testimony. **Schmeeckle** appeared as PMQ for both entities and was deposed at length (Manvitz Decl. ¶¶ 14, 18), and the Court has previously directed Barker that the appropriate vehicle for such relief is section 2025.480, with rule 3.1345 expressly cited (Manvitz Decl. ¶ 12, Ex. 6). Barker's recharacterization of the present motions as section 2025.450 motions does not avoid the rule the Court previously identified. That said, Barker did file a separate statement addressing Document Requests, and the deficiency is limited to the disputed deposition topics. The moving memoranda nevertheless set out those topics in sufficient detail for Plaintiffs to oppose on the merits, and Plaintiffs identify no concrete prejudice. Accordingly, Plaintiffs' procedural objections do not warrant denial of the motions, although counsel is admonished to comply with rule 3.1345 in any future motion under section 2025.480.

B. <u>Qualified Designee Under CCP § 2025.230</u>

Barker contends Schmeeckle was not the most qualified designee and was unprepared on the disputed topics. As to OCTSC, Barker seeks a further PMQ on Topics 1–3, 5, 6, 8, 9, 12, 16, and 17; as to RATIC, on Topics 12, 16, and 17. Barker makes three arguments. First, Schmeeckle had no experience with OCTSC's escrow process and admitted he was not knowledgeable about OCTSC's escrow policies and practices (Topics 1–3, 5, 6); his prior PMQ role in the BOBS Action was for RATIC only, not for OCTSC's escrow practices, and his more recent OCTSC underwriting work is distinct from escrow. (Manvitz Decl. ¶ 10, Ex. 5 at 32:5–33:5, 36:20–37:1.) Second, Schmeeckle had no meaningful knowledge of the basis for Plaintiffs' indemnity claims (Topic 12), the decision to enter the $10.5 million settlement (Topic 16), or each Plaintiff's damages and the allocation of payment (Topic 17) and admitted he spent only 15 minutes preparing with counsel on settlement and damages topics. (Fink Decl. ¶ 9, Ex. C at 152:24–153:4.) Third, Plaintiffs' own PMQ and in-house counsel identified Mike Marconi, John Marconi, Rich Macaluso, and Bill Burding as the executives with knowledge of the disputed topics, yet Plaintiffs declined to designate them and moved to quash Marconi's and Macaluso's depositions. After the Court denied the motion to quash, Marconi testified on May 19, 2026 that the Indemnity Agreement applies only to RATIC (not OCTSC); reinsurer Lloyds of London (not Plaintiffs) paid $9.5 million of the $10.5 million settlement; and current OCTSC escrow employees Steve Ayers and Lori Fellman have 37 combined years of OCTSC escrow experience but were not designated. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 87:2–4, 88:8–13, 90:11–15, 136:16–138:2, 159:1–25.)

Plaintiffs respond that section 2025.230 requires only the “most qualified” witness, not the most knowledgeable, and that Schmeeckle was the appropriate designee given that more knowledgeable individuals are unavailable. (Fink Decl. ¶ 3.) Plaintiffs maintain Schmeeckle gave more than 11 hours of substantive testimony, including on the BOBS loan transaction, the reasons for entering the Settlement Agreement, and the $10.5 million in damages; Schmeeckle previously served as Plaintiffs’ PMQ in the BOBS Action and currently has OCTSC underwriting experience. Plaintiffs contend Barker’s complaints concern subjects (allocation, reinsurance, organizational structure) never noticed in the deposition notices; argue allocation is legally irrelevant because RATIC and OCTSC were jointly liable in the BOBS Action; and assert Barker waived the preparedness objection by declining counsel’s offer to suspend the OCTSC deposition.

CCP § 2025.230 places the burden on the entity, not the examiner, to produce the right witnesses, and where the designee lacks personal knowledge, “he or she is supposed to find out from those who do.” (*Maldonado*, *supra*, 94 Cal.App.4th at 1395–96.) The duty is to “produc[e] the most knowledgeable person currently in its employ and mak[e] sure that that person has access to information and documents reasonably available within the corporation.” (*Id.* at 1398; *see also LAOSD Asbestos Cases*, *supra*, 87 Cal.App.5th at 951–952.)

Topics 1, 2, 3, 5, and 6 (OCTSC’s Escrow — OCTSC motion only). Schmeeckle stated that he was not involved in escrow at OCTSC and was not familiar with OCTSC’s escrow policies or practices. (Manvitz Decl. ¶ 10, Ex. 5 at 32:5–33:5.) His prior PMQ role in the BOBS Action was for RATIC. Plaintiffs’ position that more knowledgeable individuals are unavailable (Fink Decl. ¶ 3) is in tension with Marconi’s testimony identifying two current OCTSC escrow employees, Steve Ayers and Lori Fellman, with a combined 37 years of experience in OCTSC’s escrow department. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 136:16–138:2.) On this record, Plaintiffs have not shown that Schmeeckle is “the most knowledgeable person currently in [their] employ” on these topics. (*Maldonado*, *supra*, 94 Cal.App.4th at 1398.) Thus, further PMQ testimony is warranted on Topics 1, 2, 3, 5, and 6 for OCTSC.

Topics 12, 16, and 17 (Settlement and Damages — both motions). These topics bear directly on Plaintiffs’ affirmative indemnity claim. The cited deposition excerpts reflect that Schmeeckle was unable to provide substantive testimony on the basis for Plaintiffs’ indemnity claims (Topic 12), the decision to enter the $10.5 million settlement (Topic 16), or each Plaintiff’s damages and allocation (Topic 17). (Manvitz Decl. ¶ 9, Ex. 4 at 32:11–33:4, 47:16–19, 81:10–22; ¶ 10, Ex. 5 at 89:22–24, 89:25–90:17, 207:7–14.) Preparation on settlement and damages totaled approximately 15 minutes. (Fink Decl. ¶ 9, Ex. C at 152:24–153:4.) Plaintiffs do not describe any inquiry undertaken to prepare Schmeeckle on these topics through current personnel—the inquiry *Maldonado* contemplates. (*Maldonado*, *supra*, 94 Cal.App.4th at 1395–96 [“the burden is on the entity, not the examiner, to produce the right witnesses”].) Plaintiffs’ contention that allocation is irrelevant in light of joint-and-several liability presents a relevance argument the Court has already addressed at the discovery stage. The February 10, 2026 ruling held that “this information is relevant to why RATIC would pay the entire $10.5 million settlement which it now seeks from Barker when OCTSC is liable for the whole amount as it is not covered by the indemnity agreement and . . . how they allocated the payment between a covered party (RATIC) and an uncovered party (OCTSC).” (Manvitz Decl. ¶ 12, Exs. 6–7.) Topic 17 (each Plaintiff’s damages) was noticed and is relevant. (Manvitz Decl. ¶ 13, Exs. 8–9.) Marconi’s May 19, 2026 testimony indicates that knowledgeable current personnel exist and bears on the scope of the Indemnity Agreement and the identity of the entity that sustained loss—issues material to the indemnity claim as framed by the Court’s prior order. (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 87:2–4, 88:8–13, 90:11–15.) Plaintiffs’ waiver argument — that Barker forfeited the preparedness objection by proceeding with the RATIC deposition after counsel offered to suspend — does not answer the section 2025.230 obligation, which falls on the producing party before the deposition. (*Maldonado*, *supra*, 94 Cal.App.4th at 1398.) Thus, further PMQ testimony is warranted on Topics 12, 16, and 17 for both motions.

Topics 8 and 9 (OCTSC motion only). The OCTSC motion’s relief section identifies Topics 8 and 9, but the moving memorandum and reply do not separately analyze either topic or identify deposition testimony showing Schmeeckle’s lack of preparation as to them. The Court does not grant relief on topics for which Barker has not made a particularized showing of deficiency. Thus, **the OCTSC motion as to Topics 8 and 9 is denied without prejudice**.

Subjects not noticed. Reinsurance is not a noticed topic (Manvitz Decl. ¶ 13, Exs. 8–9), and Schmeeckle’s unfamiliarity with reinsurance is not, standing alone, a basis for further PMQ testimony. To the extent reinsurance information bears on the allocation of the $10.5 million settlement, it should be reachable through Topic 17 (damages).

Based on the foregoing, the motions are **granted** (OCTSC motion only) as to Topics 1, 2, 3, 5, and 6; **denied without prejudice** as to Topics 8 and 9 (OCTSC motion only); and **granted** as to Topics 12, 16, and 17 (both motions).

C. <u>Document Requests</u>

Barker contends Plaintiffs have not produced all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22 (allocation of the settlement payment) and Nos. 24 and 26 (DOI communications regarding the BOBS settlement and the inter-entity Administrative Services Agreement), and that the Court already ordered production of the same subject matter in its February 10, 2026 order. As to No. 26, Barker argues relevance to the alter-ego allegations based on overlap of RATIC and OCTSC personnel and the California Insurance Commissioner’s analysis of alter-ego issues in the context of an ongoing examination of Plaintiffs. In reply, Barker points to Marconi’s May 19, 2026 testimony identifying additional responsive documents that Barker contends have not been produced: (1) a 2022 Securities Purchase Agreement listing the BOBS Action and allocating liability to the seller (Manvitz Suppl. Decl. ¶ 3, Ex. 1 at 27:10–21, 49:7–14); (2) RATIC Board Minutes addressing allocation of liability for the BOBS Action (*id.* at 61:23–62:9); (3) accounting records reflecting payment of attorneys' fees claimed as damages (*id.* at 122:10–123:17); and (4) documents reflecting each Plaintiff's payment toward the settlement amount claimed as damages (*id.* at 135:5–9).

Plaintiffs respond that the Document Requests are moot in light of the production at the deposition, the production after the Court's February 10, 2026 ruling, and the Hernandez Declaration's representations that "[t]here is no documentation of any agreement between RATIC and [OCTSC] regarding the allocation between them of the payment of settlement related to the BOBS [Action]," that responsive communications addressing allocation have been produced, and that no responsive communications exist between Plaintiffs and the DOI regarding either the BOBS settlement or the Administrative Services Agreement. (Hernandez Decl. ¶¶ 2–4.)

A motion to compel further production from a deponent who has produced some documents lies under CCP § 2025.480. (CCP § 2025.480(a), (i).) The producing entity must make an inquiry of everyone who might be holding responsive documents or everyone who knows where such documents might be held. (*Maldonado*, *supra*, 94 Cal.App.4th at 1397.) On February 10, 2026, the Court granted Barker's motion to compel further responses and production as to RFP Nos. 70–88—categories addressing reinsurance, underwriting, settlement negotiations, communications regarding alleged damages, and RATIC's analysis of potential liability and loss reserves — and ordered Plaintiffs to provide further verified responses, production, and a privilege log within 30 days.

Document Requests Nos. 21 and 22 (allocation of the settlement payment). These requests overlap substantially in subject matter with the RFP categories the Court ordered produced in its February 10, 2026 order—particularly Nos. 81–87 (settlement negotiations, communications regarding alleged damages, RATIC's analysis of potential liability and loss reserves) and Nos. 76–78 and 80 (reinsurance and co-insurer agreements). To the extent Plaintiffs have already complied with that order, the present motion is moot as to documents produced under it. To the extent compliance remains incomplete, the appropriate remedy is enforcement of the prior order rather than duplicative relief here.

That said, Barker has identified, through Marconi's May 19, 2026 testimony, four discrete categories of potentially responsive documents that the Hernandez Declaration does not address: (1) a 2022 Securities Purchase Agreement allocating BOBS liability; (2) RATIC Board Minutes addressing the BOBS settlement; (3) accounting records reflecting which Plaintiff paid attorneys' fees claimed as damages; and (4) documents reflecting each Plaintiff's payment toward the settlement. These categories fall within PMQ

Document Request Nos. 21 and 22. While the Hernandez Declaration addresses the absence of documentation of any agreement between RATIC and OCTSC regarding allocation, it does not speak to the four categories identified above. (*See* Hernandez Decl. ¶ 2.) *Maldonado* requires Plaintiffs to inquire of everyone who might be holding responsive documents. (*Maldonado*, *supra*, 94 Cal.App.4th at 1397.) Thus, Plaintiffs is ordered to produce all non-privileged documents responsive to Nos. 21 and 22 in those four categories, with a privilege log for any withheld documents.

Document Requests Nos. 24 and 26 (DOI communications). As to No. 24 (DOI communications regarding the BOBS settlement), the subject matter overlaps substantially with the RFP categories the Court ordered produced on February 10, 2026, and the Hernandez Declaration represents that no responsive communications with the DOI exist regarding the BOBS settlement. (Hernandez Decl. ¶ 3.) As to No. 26 (DOI communications regarding the inter-entity Administrative Services Agreement), the Hernandez Declaration likewise represents that no such communications exist. (Hernandez Decl. ¶ 4.) Although Barker has established the relevance of No. 26 to the alter-ego allegations, the producing party's verified representation that no responsive documents exist resolves the request. On this record, the motions as to Nos. 24 and 26 are moot. Should it later appear that responsive documents do exist, Barker may seek further relief at that time.

Based on the foregoing, the motions as to Document Request Nos. 21 and 22 are **granted in part**, limited to the four categories identified in Marconi's May 19, 2026 testimony, with a privilege log. The motions as to Nos. 24 and 26 are **denied as moot.**

D. Sanctions

Barker seeks $39,700 in monetary sanctions per motion, for a total of $79,400, under CCP §§ 2023.010, 2023.030, 2025.450(g) and 2025.480(j). Barker's notices of motion also sought evidentiary sanctions against each Plaintiff. In reply, Barker withdrew the request for evidentiary sanctions in response to Plaintiffs' objection that such a request requires a separate statement. Only the monetary sanctions requests therefore remain at issue. Plaintiffs request denial of the motions and themselves seek $13,800 in monetary sanctions under section 2025.480(j).

Because the present motions are properly characterized as motions to compel further deposition testimony and production under section 2025.480, the operative sanctions provision is section 2025.480(j), which provides that "the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless [the court] finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2025.480(j).)

Because the motions are granted in substantial part, the mandatory sanctions provision of section 2025.480(j) runs against Plaintiffs. While sanctions are warranted, the amount Barker requests is excessive. Barker's withdrawal of the evidentiary sanctions request further reduces the fees reasonably attributable to the meritorious portions of the motions. A reduced monetary award against Plaintiffs is therefore appropriate.

Barker's $39,700 figure reflects 76+ hours of attorney time at hourly rates ranging from $350 to $925. (Manvitz Decl. ¶¶ 26–29.) The hours include preparing the moving papers (12+); reviewing the opposition, drafting the reply, and appearing at the hearing (6); meet and confer efforts (2+); attending the February 10, 2026 RFP hearing (5+); serving and meeting and conferring on non-party reinsurance subpoenas (6+); preparing for and attending the OCTSC PMQ deposition (16+); and preparing for and attending the RATIC PMQ deposition (15+). (*Id.* at ¶ 26(a)–(f).) The same $39,700 figure and same time entries are submitted in both the OCTSC and RATIC motions. (Compare Manvitz Decl. ¶¶ 26–29 [OCTSC] with Manvitz Decl. ¶¶ 26–29 [RATIC].) Thus, awarding the full amount in each motion would result in double recovery for substantially overlapping work. Moreover, several time entries appear to fall outside the scope of recoverable motion sanctions under CCP § 2025.480(j), which authorizes only fees incurred in making (or opposing) the motion. Thus, only the entries directly tied to making the motions are properly recoverable, and even those are subject to further reduction for the partial denial as to Topics 8 and 9, the partial mootness of the Document Requests in light of the February 10, 2026 order, and the withdrawal of the evidentiary sanctions request.

The Court disallows the following: attending the February 10, 2026 RFP hearing (5+); serving and meeting and conferring on non-party reinsurance subpoenas (6+); preparing for and attending the OCTSC PMQ deposition (16+); and preparing for and attending the RATIC PMQ deposition (15+). (*Id.* at ¶ 26(a)–(f).) This results in a reduction in time from 76 hours to 34 hours at a rate of $600 per hour resulting in a total amount of $20,400 which is divided in half resulting in a **total sanction of $10,200 payable within 30 days of this order.**

Plaintiffs' cross-request for $13,800 is denied.

Summary:

- **<u>OCTSC Motion</u>**: **GRANTED in part.** OCTSC shall produce a properly prepared PMQ on Topics 1, 2, 3, 5, 6, 12, 16, and 17 within thirty (30) days of this Order. As to Topics 8 and 9, the motion is **DENIED without prejudice** for failure to make a particularized showing. Plaintiffs shall produce all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22, including the 2022 Securities Purchase Agreement, RATIC Board Minutes addressing the BOBS settlement, accounting records reflecting attorneys' fees paid by each Plaintiff, and documents showing each Plaintiff's payment toward the settlement, with a privilege log for any withheld documents, within thirty (30) days. As to PMQ Document Request Nos. 24 and 26, the motion is **DENIED as MOOT**, without prejudice to renewal if responsive documents are later identified. To the extent the present motion seeks documents already covered by the Court's February 10, 2026 order on Barker's third set of RFPs Nos. 70–88, the motion is **MOOT** as to documents already produced under that order.

- **RATIC Motion**: **GRANTED in part.** RATIC shall produce a properly prepared PMQ on Topics 12, 16, and 17 within thirty (30) days. Plaintiffs shall produce all non-privileged documents responsive to PMQ Document Requests Nos. 21 and 22 within thirty (30) days, with a privilege log for any withheld documents, on the same terms as the OCTSC Motion. As to PMQ Document Request Nos. 24 and 26, the motion is **DENIED as MOOT**, without prejudice to renewal if responsive documents are later identified. To the extent the motion seeks documents already covered by the Court's February 10, 2026 order on Barker's third set of RFPs Nos. 70–88, the motion is **MOOT** as to documents already produced under that order.

- **Sanctions**: Barker's request for monetary sanctions is **GRANTED** in the reduced amount of $10,200 for both motions combined, payable by Plaintiffs and their counsel of record, jointly and severally, within thirty (30) days. Barker's request for evidentiary sanctions is noted **WITHDRAWN** and requires no ruling. Plaintiffs' cross-request for $13,800 in monetary sanctions is **DENIED**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304826	ANDERSON VS LIL' WAVE FINANCIAL, INC.	MOTION TO SET ASIDE JUDGEMENT AND/ OR VACATE PURPORTED SETTLEMENT

Tentative Ruling:

Plaintiff brings this motion to set aside the settlement agreement of the parties claiming that she did not sign the "amended" agreement. However, this assertion is contradicted by Exhibit A to Plaintiff's motion showing that she in fact signed the settlement agreement and mutual release on 11/8/2025.

Plaintiff alleges that there was an amended agreement that introduced new terms. However, Plaintiff presents no evidence of a purported amended agreement.

Plaintiff attaches Exhibit A and B to her moving papers, both of which are the settlement agreement.

Plaintiff alleges that she was coerced to sign the agreement but presents no evidence of coercion. In her reply, Plaintiff alleges coercion on behalf of her prior counsel but provides no evidence of coercion.

Plaintiff, again, argues that Defendants are relying on altered terms without presenting any evidence that any terms have been altered.

Finally, Plaintiff asks for relief under CCP 473(b), but makes no argument under the requirements of CCP 473(b) which requires a showing of mistake, inadvertence, surprise or excusable neglect. The court is empowered to relieve a party "upon any terms as may be just … from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (C.C.P. §473(b).) Because the law favors judgments on the merits, "doubts must be resolved in favor of relief…." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

For these reasons the motion to set aside the settlement agreement executed by Plaintiff on 11/8/2025 is denied. The request by Defendants for attorney's fees is denied.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION FOR PROTECTIVE ORDER
CASE #	**CASE NAME**	**HEARING NAME**
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION TO COMPEL COMPLETION OF PLAINTIFF'S DEPOSITION

Tentative Ruling:

This is a childhood sexual assault case. Plaintiff Jane Doe was a minor (at the time this matter was filed), disabled student at Defendant California School for the Deaf, Riverside ("School"), which is allegedly a component of the State Special Schools and Services Division of Defendant State of California Department of Education ("State"). Plaintiff alleges that during the 2022 and 2023 school years, she was repeatedly sexually assaulted by other students on School premises in classrooms, hallways, gymnasium and bathrooms. Plaintiff asserts that teachers and staff of the school failed to properly monitor and supervise students, which allowed the sexual misconduct to continue, despite complaints from parents.

On November 22, 2023, Plaintiff, by and through her Guardian Ad Litem, P.L., filed the Complaint. She asserts four causes of action for: (1) Negligence; (2) Negligent Hiring, Retention, Supervision and Training; (3) Negligent Infliction of Emotional Distress; and (4) Intentional Infliction of Emotional Distress. Trial commenced on February 27, 2026. On March 24, 2026, the Court granted Plaintiff's Motion for Mistrial due to Defendants' failure to produce 17,000 pages of documents. The new trial was initially set for May 22, 2026, but was continued to July 31, 2026.

Plaintiff now moves for a protective order to prevent her continued deposition, which was noticed on April 7, 2026. Plaintiff argues that she is clinically fragile, and her mental condition has deteriorated since the trial. Plaintiff argues that the second deposition is unnecessary since Plaintiff was previously deposed for five hours and Defendants have access to school records and other evidence. Plaintiff argues that the Court already determined that another deposition was improper.

Defendants argue that they were unable to discuss damages during the first deposition before Plaintiff's counsel terminated the deposition. Defendants argue that the mistrial reopens discovery and allows the parties to start over. Defendants argue that Plaintiff's testimony is necessary to prepare for trial and Defendants will be deprived of due process rights if they are not permitted to depose Plaintiff. Defendants argue that Plaintiff failed to produce competent evidence that Plaintiff's mental health has deteriorated or that she cannot participate in the deposition. Defendants argue that a discovery referee could be appointed to supervise the deposition, or other guardrails could be implemented to protect Plaintiff without denying Defendants the right to depose Plaintiff.

In her reply, Plaintiff argues that the mistrial does not allow for unlimited new discovery. Plaintiff argues that the Court already determined that Defendants were not diligent in moving to compel the second deposition. Plaintiff argues that the evidence regarding her mental health crisis is sufficient, and Defendants have produced no competing evidence. Plaintiff argues that Defendants' due process concerns are unfounded because they have already deposed Plaintiff and have access to substantial records. Plaintiff argues that a discovery referee will not address the clinical risks.

Defendants have also brought a motion seeking to compel the same deposition at issue in the motion for protective order. The parties assert the same arguments as those set forth above regarding the protective order in this motion.

Analysis

A court should "limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (CCP § 2017.020(a).) CCP § 2025.420(b) provides that "for good cause shown," the court may issue a protective order "to protect any party ... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." The burden is on the moving party to establish "good cause" for the requested relief. (See Emerson Elec. Co. v. Superior Court (1976) 16 Cal.4th 1101, 1110; Nativi v. Deustsche Bank Nat'l Trust Co. (2014) 223 Cal.App.4th 261, 318.)

"A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery." (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.) "In the absence of contrary court order, a civil litigant's right to discovery is broad. '[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.;" (Id. at 541.) Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Generally, a deposition examination shall be limited to seven hours of total testimony. (CCP § 2025.290(a).)

Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent's attendance, testimony, and production of documents. (CCP § 2025.450(a).) Based on the evidence provided, it does appear that Plaintiff's deposition ended after approximately 5 hours, and the parties indicated that a new date would be set to finish the deposition. (Jane Doe's Deposition, 213:15-25; 214:1-2.) Defendants have re-noticed Plaintiff's deposition, and she has failed to appear.

Plaintiff argues that due to the state of her mental health, her motion should be granted, Defendants' motion should be denied, and she should not have to sit for a second day of deposition testimony. She provides a declaration from a licensed marriage and family therapist that has been treating her since November 28, 2025. (Declaration of Clara Logan, ¶ 5.) Her therapist provides that at or around the time of trial, which ended in a mistrial, Plaintiff "experienced an acute behavioral and psychiatric crisis." (Id. at ¶ 8.) It appears that she engaged in high-risk behavior like leaving home without authorization, operating a vehicle without a license, and placing herself in a situation involving sexual activity with a peer. (Id. at ¶ 8.) Plaintiff is 20 years old with hearing and other disabilities. (Complaint, ¶ 2; Application and Order for Appointment of Guardian Ad Litem, ¶ 4.) Plaintiff's father contends that he is her conservator. (Declaration of P.L, ¶ 1.) However, it is unclear what type of conservatorship is in place and the extent of said conservatorship. No evidence regarding this issue has been provided. Plaintiff's therapist does opine that the stress associated with legal proceedings has contributed to her clinical instability and she believes that Plaintiff cannot safely participate in any adversarial legal proceedings at this time. (Declaration of Clara Logan, ¶¶ 12 and 13.) Her therapist provides that a deposition setting poses a significant and foreseeable risk of harm to Plaintiff like triggering an acute trauma response. (Id. at ¶ 14.) While her therapist appears to opine that the prior trial and mistrial contributed to the deterioration in her mental state, it is unclear why. Plaintiff did not testify at trial and no evidence has been provided to support this assertion. She provides no evidence that her deterioration was caused by her prior deposition.

Defendants argue that this assessment by Plaintiff's therapist is not correct. However, they provide no evidence to contradict this assessment. Defendants do point to the fact that this is no ordinary witness, it is the Plaintiff. The individual who has brought the claims at issue. They argue that their right to due process will be violated if they are not allowed to fully depose Plaintiff.

Plaintiff was initially deposed on August 26, 2024. (Decl. of Klein, ¶ 2.) The deposition lasted nearly five hours. (Id.) Plaintiff contends that Defendants have done extensive discovery in this matter and additional time deposing Plaintiff is not warranted based on how fragile her mental health state is. Defendants appear to want to obtain additional information at deposition regarding Plaintiff's damages. The parties both appear to agree that Defendant can obtain additional discovery due to the mistrial. However, they disagree as to the extent of discovery allowed. Plaintiff also argues that the Court has already denied Defendants' prior attempts at finishing Plaintiff's deposition. However, this was done due to the discovery cut-off date before the mistrial. (Minute Order 1/27/26.)

Plaintiff's mental state is clearly important. The evidence provided appears to indicate that she is not in a good place and has been experiencing suicidal ideations. (Declaration of Clara Logan, ¶ 8.) However, Plaintiff was the party who brought this case. A declaration for mistrial automatically reopens discovery. (Clark v. Optical Coating Laboratory, Inc. (2008) 165 Cal.App.4th 150, 169 f. 13.) While Plaintiff argues that Defendants did not act diligently in bringing this motion, they cite to no authority to support this assertion. Additionally, it appears that there are new facts at issue that were not at issue prior to trial – Plaintiff's deterioration. If Plaintiff is going to seek damages based on her present mental state, Defendants should be able to ask questions about this state and what may have caused it.

The Court will grant the motion to compel the deposition of Plaintiff, but with limits to accommodate Plaintiff's mental health, but preserve Defendants' right to discovery.

The deposition will be limited to two hours and can be broken up over two consecutive days (an hour each day). Plaintiff may be allowed to have her therapist onsite. Plaintiff will select the location of the deposition. If Plaintiff elects, a discovery referee shall be allowed at Defendants' expense to make sure Plaintiff does not get overwhelmed, and Defendants' questions are not out of line or too aggressive. The Court further orders that the individual that upset Plaintiff at the last deposition can appear via zoom and their image blocked from Plaintiff's view.

The timeline under CCP §§ 2028.030(b) and 2028.040 can be adjusted due to the pending 7/31/26 trial date or brief continuance of the trial date can be discussed with the Court.

The Court denies the motion for protective order but grants the motion to compel her deposition with limits that will accommodate Plaintiff's mental state as indicated above.

5.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2306307	JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY	MOTION TO COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH COURT ORDER

Tentative Ruling:

This matter was continued, and Defendants were ordered to submit a supplemental privilege log by 6/26/26. As of 6/24/26, no privilege log has been provided. On June 23 the Court signed a stipulation by the parties extending timelines and deadlines.

6.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2402001	NICKERSON VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL VEHICLE INSPECTION

Tentative Ruling:

This is a lemon law action. On April 15, 2024, Plaintiff Jaelynne Nickerson ("Plaintiff") filed a Complaint against Defendant American Honda Motor Co., Inc. ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Act; and (2) breach of implied warranty in violation of the Song Beverly Act. In the Complaint, Plaintiff alleges that on November 17, 2022, she purchased a 2023 Honda HR-V (the "Vehicle"), on which Defendant issued a warranty. (Complaint at ¶¶ 8, 16.) The Vehicle was delivered to Plaintiff with defects and nonconformities that impaired the use, value, and safety of the Vehicle. (Complaint at ¶ 17.) Plaintiff brought the Vehicle to Defendant's authorized repair facility for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 18-19.) Defendant failed to provide restitution. (Complaint at ¶ 20.)

On February 28, 2025, Defendant served a notice of vehicle inspection on Plaintiff, with the inspection to take place on March 31, 2025. On March 26, 2025, Plaintiff served objections to the inspection notice. On July 17, 2025, Defendant served an amended notice of vehicle inspection for August 5, 2025. On August 1, 2025, Plaintiff again served objections. In December 2025, Defendant asked Plaintiff to provide available dates for the vehicle inspection, and Plaintiff stated that the discovery cut-off had already passed. The trial was continued for a short time, and in February 2026, the parties agreed on February 18, 2026 for the vehicle inspection, but Defendant's expert got sick and could not attend.

Defendant now moves for an order compelling Plaintiff to produce her Vehicle for inspection and seeks $980 in sanctions.

In a limited opposition, Plaintiff argues that the inspection occurred on May 15, 2026, so the motion is moot, and Defendant agreed to take the motion off calendar, then failed to do so.

Analysis

Pursuant to C.C.P. § 2031.010(a) "[a]ny party may obtain discovery … by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." A party may demand that any other party allow the party to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it. (C.C.P. § 2031.010(d).) Additionally, pursuant to C.C.P. § 2031.020(a), "[a] defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time." If the responding party fails to serve a timely response to an inspection demand, the demanding party may move to compel a response. (C.C.P. § 2031.300(a).)

In the present case, Plaintiff contends that the inspection of her Vehicle occurred on May 15, 2026. Defendant does not dispute this. As the inspection already occurred, this motion is moot. Furthermore, there are no grounds for sanctions. Accordingly, the motion is denied.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2503513	COUNTY OF RIVERSIDE VS TSC STATION LLCJONES	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The Motion for Preliminary Injunction is unopposed. Accordingly, the motion is granted. The Court has signed the submitted proposed Order. Moving party to give notice of ruling.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2600447	ABITO VS BRUNK'S STEAKHOUSE INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant Brunk's Steakhouse, Inc. ("Defendant")
Responding party: Plaintiff Ryan Abito ("Plaintiff")

This matter was heard on May 13, 2026. The Court continued the matter to June 5, 2026 and stated that Defendant was to file a Supplemental Reply brief (having the benefit or receiving the Abito Declaration) by May 21, 2026. Plaintiff was ordered to file a Response to the Defendant's Supplemental Reply Brief by May 29, 2026.

On May 21, 2026, Defendant filed a Supplemental Reply and exhibits. On May 29, 2025, Plaintiff filed a Supplemental Opposition.

The matter was continued to June 26, 2026 as the May 29, 2026 documents were not available for review prior to the June 5, 2026 hearing.

* * *

I. Supplemental Briefs on Existence of Arbitration Agreement

A. Defendant's Supplemental Reply

In the Supplemental Reply, Defendant contends it has now provided direct percipient testimony, contemporaneous business records, corroborating employee declarations, representative onboarding records, and a master summary chart of onboarding files showing that the arbitration agreement was part of the standardized July 2025 onboarding process. (See Supplemental Brunk declaration and supporting documents.)

However, as explained at length in the Supplemental Opposition, the supplemental evidence does not cure the evidentiary concerns previously identified by the Court. It does not establish that Plaintiff entered into a valid and enforceable arbitration agreement as part of his onboarding as General Manager.

B. Plaintiff's Supplemental Opposition explains how Defendant has not established the existence of an arbitration agreement in the first instance

To begin with, Plaintiff accurately contends that the Court's tentative ruling was unambiguous:

"The logical inference from these anomalies — an impossible date, unrecognizable signatures, and a CEO declaration offering not a single fact about when or how any signing occurred — is that the document was fabricated." (Tentative Ruling, p. 5.)

Plaintiff provides a comprehensive explanation of how the Supplemental Reply does not cure the court's conclusion but instead buries it under paper.

In the Supplemental Reply, Defendant's CEO, Nicole Brunk submits a new declaration with 125 new paragraphs, a July 15, 2025 recap email, Indeed screenshots, employee declarations, onboarding charts, and comparator files. However, NOT included in all of this is a single sentence in which Ms. Brunk states that she watched Ryan Abito sign the Voluntary Arbitration Agreement. This is the main problem with sending this matter to arbitration.

In new ¶¶ 48-50 of her Reply declaration, Ms. Brunk declares:

¶48. Plaintiff did not deny executing the arbitration agreement prior to filing his opposition to Defendant's Motion to Compel Arbitration.

¶49. Plaintiff's assertion that he did not execute onboarding documentation is inconsistent with:

- his participation in onboarding,
- his role in training employees, and
- Defendant's uniform onboarding process requiring completion of employment documentation.

¶50. Based on the onboarding process described above and Plaintiffs participation in that process, it is my understanding that Plaintiff completed the onboarding documentation required of employees, including the arbitration agreement.

Plaintiff contends that ¶¶ 49 and 50 are fabricated and never occurred. Plaintiff contends that the signatures of all disputed documents are not his, and the character strings "ABIN. MV" and "ABITV . RM" do not correspond with his name, his initials, any abbreviation he has ever used, or any version of his signature in any context. (Supp. Abito Decl., ¶¶ 5, 13, 15, 24.)

Plaintiff further points out that he provided a concrete, verifiable, and unrebutted handwriting identification: he uses exclusively a discontinued blue Sharpie Marker Pen, 0.7 bold thickness, for all professional writing. (Supp. Abito Decl., ¶ 16.) Defendant's exhibits are black-and-white reproductions. A black-and-white scan cannot show the distinctive blue color of Plaintiff's pen. Any document Plaintiff actually signed would bear that pen's distinctive line weight and color. (Supp. Abito Decl., ¶ 17.) The absence of color originals is itself corroborating evidence that these documents are not authentic.

The supplemental opposition makes the following points (summarized here, but explained comprehensively in the document):

1. Ms. Brunck still does not state that she watched Plaintiff sign the arbitration agreement. In her supplemental declaration, ¶47, she claims that she "personally observed Plaintiff sign new hire paperwork, including

paperwork for new hires in his capacity as General Manager and his own onboarding paperwork as an employee." She says "onboarding paperwork as an employee" — not the arbitration agreement.

In her initial reply declaration, Ms. Brunk identified exactly three documents she claims to have witnessed Plaintiff sign: "his new hire checklist, Notice to Employee under Labor Code section 2810.5, and Employee Acknowledgment of California Break and Rest Period Policy." The arbitration agreement was not on that list. It remains off the list in the supplemental declaration. The word "including" in ¶47 is not a substitute for the specific percipient testify the Court required.

Also, the Court notes that Plaintiff declares the opposite under oath: Nicole Brunk was not physically present when he signed any of his employment documents, he was never given an employment packet to complete as an employee, and he specifically did not sign the arbitration agreement. (Supp. Abito Decl., ¶¶ 5, 24.) Under *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158,170, authentication requires a declarant who can "explain how she knew" the employee signed the specific document. Brunk still cannot explain that. She was not there for the signing she is trying to prove.

2. *Brunk's hire date error*. In ¶5 of Brunk's supplemental declaration, she states that Plaintiff's "employment began <u>August 17, 2025</u>." Every onboarding document Defendant submitted in Exhibit B — the New Hire Checklist, the EDD DE-4, the Notice to Employee, and the Break/Rest Period Acknowledgment — shows a hire date of <u>July 17, 2025</u>, not August 17, 2025. (See Declaration of Brendan Burton in Support of Supplemental Brief ("Burton Decl.") ¶ 9.) Nicole Brunk is off by a month on her own employee's start date — in the same declaration in which she claims to have personally witnessed that employee's onboarding conduct on that very date. If she cannot accurately state when Ryan started working from documents in her possession, the Court cannot credit her assertion that she personally observed his execution of a specific document on that same date.

3. The July 15, 2025 daily recap email omits the arbitration agreement. Defendant submits the July 15, 2025 "Daily Recap" email as corroboration that the arbitration agreement was part of the standard onboarding packet. (Supp. Brunk Decl., ¶¶ 58–67.) But the email specifically enumerates the onboarding documents for Thursday's FOH training: "1-9, W-2 Sexual Harassment, Employee Handbook, Acknowledgement form, Wage and Offer Letter, meals and breaks." (See Burton Decl. ¶ 4.) The Voluntary Arbitration Agreement does not appear. Plaintiff, who received this email in his capacity as General Manager preparing for onboarding, confirms the arbitration agreement's absence from the list and notes it is consistent with his recollection that the arbitration agreement was not a document he administered or distributed during onboarding. (Supp. Abito Decl., ¶ 35.)

Defendant's corroborating email specifically undermines the argument it was offered to support.

4. Plaintiff Ryan's new hire checklist is facially incomplete and bears anomalies. Ryan Abito's New Hire Checklist shows that the "Harassment/Discrimination Agreement" and "I-9 Form" boxes in the HR Paperwork Audit section are NOT checked. (See Burton Decl. ¶ 5.) If the onboarding process was uniform and complete — as Defendant repeatedly insists — how did two required documents go unchecked for the General Manager? The answer Plaintiff provides is more consistent: Nicole Brunk was responsible for checking the HR audit boxes, not Ryan. Ryan never completed his own checklist because he was never personally onboarded through the employee process. (Supp. Abito Decl., ¶¶ 6, 21.) Also, the "Emergency Contact" field on his New Hire Checklist reflects only the word "Wife" with no name, no telephone number, and no other identifying information. If he had completed that field himself, he would have written his wife's name and contact number. The absence of any identifying information is consistent with someone else having completed that section without knowing who his emergency contact is. (Supp. Abito Decl., ¶ 22.)

5. Ryan's I-9 form does not exist. Plaintiff does not recall completing or signing an I-9 during his employment, does not recall providing identification documents as part of any formal onboarding process, and would be surprised if a properly completed I-9 for him exists. (Supp. Abito Decl., ¶ 31.) Consistent with this, the "I-9 Form" box on Ryan's New Hire Checklist is not checked. The Court is aware that the I-9 is federally required and carefully documents all employment forms — it requires a physical inspection of government-issued identification documents and a signed certification by an authorized employer representative. If Brunk's uniform onboarding process was as she describes, Ryan's I-9 should exist. Defendant has not produced it. Plaintiff requests the Court order Defendant to produce his complete employee file. If Defendant cannot produce his government-issued ID, Food Handler's Certificate, ServSafe certification, and completed I-9 — documents any employer is required to collect and retain — that failure directly corroborates Plaintiff's declaration that he was never formally onboarded. (Supp. Abito Decl., ¶ 38.)

6. The Indeed account was shared – Ryan's messages do not authenticate his signing. The Indeed message screenshots in Exhibit D show two email addresses associated with the employer account: "bww.ryanabito@gmail.com" and "nbrunk649211@gmail.com," with the account displayed as "Brunk's Butchery." (See Burton Decl. ¶ 6.) This was a shared employer restaurant account to which Nicole Brunk also had access and which she also used. (Supp. Abito Decl., ¶ 33.) The fact that messages were sent from this shared account inviting job applicants to orientation does not establish that Ryan Abito personally composed each message or that it has any bearing on whether he signed his own

arbitration agreement. His use of the restaurant's recruiting account to schedule an orientation is a reflection of his GM hiring responsibilities — not evidence of execution.

7. The disputed signatures are verifiably not Plaintiff Ryan's handwriting. Plaintiff has submitted authenticated writing samples from his employment at Brunk's Steakhouse — including a Witness/Team Member Statement Form dated August 6, 2025, completed in his own handwriting using his distinctive blue Sharpie Marker Pen 0.7. (Supp. Abito Decl., ¶ 16, Exh. A.) The Court can compare those samples to the signatures on the disputed documents. Plaintiff identifies with precision how he signs and prints his name: "Ryan Abito" with a distinct capital "R" and capital "A" when signing as manager, or "Ryan Abito," "R. Abito," or all-capital-letter printing when printing his name for himself. (Supp. Abito Decl., ¶ 14.) None of these styles produce "ABIN . MV," "ABITV. RM," or "ABITURM." Those character strings do not resemble his name, his initials, any abbreviation or shorthand he has ever used, or any signature or printing style he has used in any professional or personal context. (Supp. Abito Decl., ¶ 15.)

   Defendant's counter that Ryan had "multiple variations" of his signature is an inadmissible lay opinion offered by the accused wrongdoer, not a forensic document examiner. **Plaintiff asks the Court to order production of the original documents in color for comparison, or direct the parties to submit the disputed signature and Plaintiff's authenticated samples to a court-appointed forensic document examiner before ruling.** Resolving a disputed signature question against the non-moving party without expert analysis, on the basis of the accused's own lay opinion, is reversible error under *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 48.)

8. Brunk's ¶¶ 49-50 "fabricated" conversation in supplemental declaration. Brunk claims in Paragraphs 49 and 50 of her supplemental declaration that she asked Ryan about the arbitration agreement during onboarding, and that he responded that arbitration agreements were "common practice for businesses" and "not a big deal." Plaintiff declares under penalty of perjury that this conversation never occurred. Plaintiff claims that at no time during his employment did Nicole Brunk ask him about the arbitration agreement, discuss it with him, or raise the topic of arbitration with him in any context. He never told her or anyone at Brunk's Steakhouse that any arbitration agreement was "not a big deal" or that arbitration was common practice, because that conversation simply never happened. (Supp. Abito Decl., ¶ 23.) This is a "he said, she said" situation, but given Brunk's testimony is uncorroborated, the issue weighs in favor of Plaintiff.

9. "Plaintiff's sophistication" argument fails. Defendant argues that Ryan's role in administering onboarding makes his denial implausible because "the very person responsible for creating, assembling, distributing, explaining, collecting, and maintaining onboarding packets somehow did

not execute the arbitration agreement." (Supp. Reply, p 6.) This argument actually strengthens Plaintiff's position. Ryan confirms he helped develop the onboarding packet's content and structure in partnership with Nicole Brunk. He was the person who sat with other employees and walked them through each form. He was the person who collected and turned over completed packets. (Supp. Abito Decl., ¶¶ 3–6.)

Because Ryan was the person administering the onboarding process for others, he is uniquely positioned to testify about what that process looked like and to recognize that he was never on the receiving end of it as an employee. He was never personally given a packet to complete, never personally walked through the forms by anyone else, and never administered his own onboarding process in the way he administered it for others. (Supp. Abito Decl., ¶ 5.) His intimate familiarity with the process makes his denial more credible, not less. He knows exactly what the process looks like — and he knows it was never done for him. (*Brockman v. Kaiser Foundation Hospitals* (2025) 114 Cal.App.5th 569, 585, 337 Cal.Rptr.3d 281 [sophistication as to arbitration concepts does not substitute for evidence that this specific employee signed this specific agreement].)

10. Nicole Brunk history of evidence tampering. According to Plaintiff, Nicole Brunk engaged in spoliation of evidence. Per Plaintiff, Nicole Brunk required Plaintiff, under significant pressure and intimidation, to open his personal laptop and delete files she deemed "company related." The deleted materials included his written employment agreement, payroll records, spreadsheets, correspondence, and other files. His written employment agreement — reflecting his $3,000 bi-weekly salary at opening, later increased to $3,500 — was among the documents destroyed. The Grant Jacobs offer letter and related email were similarly deleted. (Supp. Abito Decl., ¶¶ 27–28.)

11. Employee declarations. Defendant leans heavily on the seven employee declarations, characterizing them as "percipient witnesses" who "directly contradict" Ryan's denial. (Supp. Reply, p. 5.) But not one of those declarants states they personally witnessed Ryan Abito sign the Voluntary Arbitration Agreement. (See Burton Decl. ¶ 11.) They place Ryan in the room at onboarding, in a leadership role, distributing and collecting paperwork. Plaintiff does not deny any of that. He was in the room. He was leading onboarding for other employees. That was his job. What those employees observed was Ryan administering their process — not his own. (Supp. Abito Decl., ¶ 7.)

Based on the above, there is enough for the Court to deny this motion on grounds that the existence of an agreement to arbitrate has not been established. **For this reason, the motion to compel arbitration is denied.**

II. Issue of Unconscionability

Plaintiff argues in the alternative that the arbitration agreement is procedurally and substantively unconscionable. A contract is unenforceable if it is unconscionable. (Civ. Code § 1670.5.) “The doctrine of unconscionability contains two components: procedural unconscionability and substantive unconscionability.” (*Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 713.) Both must “be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) The procedural element focuses on oppression and surprise due to unequal bargaining power. (*Ibid.*) The substantive element focuses on overly harsh or one-sided results. (*Ibid*.) The core concern of the unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1145.) The unconscionability doctrine ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as overly harsh. (*Ibid*.)

A. The Agreement is not Procedurally Unconscionability

Plaintiff contends that he was given no time to review the agreement, no opportunity to consult counsel, no explanation of its terms, and was never even told it existed. (Declaration of Brian Abito (“Abito Decl.”), ¶¶ 3–11.) Plaintiff contends that the agreement's acknowledgment in Section 7 that Plaintiff "had the opportunity to read this Agreement, ask questions, and consult an attorney" is belied by every fact in this record. (Abito Decl., ¶¶ 3–8.) Plaintiff claims that the recitation is illusory. Additionally, the agreement incorporates the AAA Employment Rules and JAMS Rules by reference without attaching either set of rules, a recognized factor supporting procedural unconscionability. (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 692 ["[A]n arbitration clause's failure to attach arbitration association rules incorporated by reference could be a factor in support of a finding of procedural unconscionability."); (Declaration of Brendon Burton (“Burton Decl.”), ¶ 10; Abito Decl., ¶ 9.)

However, as noted by Defendant, Plaintiff’s unconscionability argument is internally inconsistent with his formation argument. Plaintiff claims he was never shown the agreement, never asked to sign it, and knew nothing about it. Those allegations, if credited, address formation - not procedural oppression. He cannot simultaneously claim the agreement was never presented and that the circumstances of presentation were oppressive.

Regardless, the agreement expressly states that it is voluntary, that signing does not affect hiring, continued employment, or benefits, and that the employee had the opportunity to read the agreement, ask questions, and consult an attorney. (Brunk Decl. in support of motion, Ex. A.) Plaintiff was not a vulnerable, unsophisticated employee confronted with hidden terms. Defendant's evidence shows he was General Manager, directly involved in onboarding, and familiar with the same documents provided to employees.

B. The Agreement is not Substantively Unconscionable

Plaintiff contends that the agreement is substantively unconscionable because (1) the “voluntary” label is illusory; (2) the discovery provision is inadequate; (3) incorporated rules were never disclosed; (4) no arbitrator selection mechanism exists; (5) the handbook integration contradicts contractual obligation; (6) the agreement is permeated with unconscionability and severance is inappropriate.

Here, the agreement is substantively fair. It is mutual and bilateral:

- The agreement requires both the Company and the Employee to arbitrate covered employment disputes;
- The agreement provides for AAA Employment Rules or JAMS by mutual agreement;
- The agreement requires that the Company pay for arbitration costs including arbitrator fees and forum fees except for a filing fee not exceeding the cost of a court filing;
- The agreement permits all remedies available in court;
- The agreement preserves the right to counsel;
- The agreement expressly allows discovery – there do not appear to be limitations imposed.

Further, Plaintiff contends that the AAA/JAMS rules were not attached to the agreement, but this does not mean the agreement is unconscionable. The agreement identifies the forum rules and includes the core protections required for employment arbitration: employer-paid arbitration costs, available remedies, counsel and discovery. Here, Plaintiff does not identify any hidden rules that change the bargain or imposes unfair terms. Also, as noted by Defendant, there is no fatal absence of an arbitrator selection mechanism. The agreement identifies the AAA Employment Rules, and AAA has already begun administering the Abito arbitration subject to Plaintiff’s jurisdictional objection. Plaintiff cannot contend that there is no mechanism while simultaneously objecting to Defendant’s attempt to proceed through the identified forum.

Summary:

Motion to compel arbitration is denied.